

HOUSE No. 4459

Substituted by the House, on motion of Mr. Walsh of Peabody, for a bill with the same title
(House, No. 3913) [Local Approval Received]. August 28, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the town of Seekonk.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of article 1 of the charter of the town of Seekonk, which is on file
2 in the office of the archivist of the commonwealth, as provided in section 12 of chapter 43B of
3 the General Laws, is hereby amended by striking out the words “Board of Selectmen” and
4 inserting in place thereof the following words:- Select Board.

5 SECTION 2. Section 5 of said article 1 of said charter is hereby amended by striking out
6 in the definition of “Resolution” the words “Board of Selectmen” and inserting in place thereof
7 the following words:- Select Board.

8 SECTION 3. Subclause (A) of the second paragraph of section 5 of article 2 of said
9 charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place
10 thereof the following words:- Select Board.

SECTION 4. The first paragraph of section 6 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 5. The second paragraph of said section 6 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 6. The third paragraph of section 7 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 7. Section 3 of article 3 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 8. Section 5 of said article 3 of said charter is hereby amended by striking out the word “himself” and inserting in place thereof the following word:- himself.

SECTION 9. Subclause (A) of the first paragraph of section 1 of article 4 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 10. The first sentence of section 3 of said article 4 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 11. Article 5 of said charter is hereby amended by striking out the title “Board of Selectmen” and inserting in place thereof the following title:- Select Board.

SECTION 12. The first paragraph of section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 13. The second paragraph of said section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 14. The third paragraph of said section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 15. The first paragraph of section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- Select Board.

SECTION 16. The second sentence of said first paragraph of said section 2 of said article 5 of said charter is hereby amended by striking out the words “Boards of Selectmen” and inserting in place thereof the following words:- Select Boards.

SECTION 17. The second paragraph of said section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- Select Board.

SECTION 18. The first sentence of section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 19. Subsection (A) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 20. Subsection (B) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- Select Board.

SECTION 21. The first paragraph of subsection (C) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 22. The second paragraph of said subsection (C) of said section 3 of said article 5 of said charter is hereby amended by striking out the word “his” and inserting in place thereof the following words:- the Town Administrator’s.

SECTION 23. Section 4 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 24. The second sentence of section 1 of article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 25. The second sentence of the first paragraph of section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 26. The second sentence of the second paragraph of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 27. Said second sentence of said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking out the word “his” and inserting in place thereof the following words:- the Town Administrator’s.

SECTION 28. Said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking out subsection (A) and inserting in place thereof the following subsection:-

(A) The Town Administrator shall supervise, direct and be responsible for the efficient administration of all functions under the Town Administrator’s control, as may be authorized by the Charter, by-law, town meeting vote or by the vote of the Select Board.

SECTION 29. Said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking out subsection (B) and inserting in place thereof the following subsection:-

(B) The Town Administrator shall attend all regular and special meetings of the Select Board, unless excused. The Town Administrator shall have a voice, but no vote, in all of the Board's discussions.

SECTION 30. Said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking subsection (C) and inserting in place thereof the following subsection:-

(C) The Town Administrator shall attend all sessions of the town meeting and answer all questions concerning warrant articles that are directed to the Town Administrator and that relate to matters under their general supervision.

SECTION 31. Said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking out subsection (D) and inserting in place thereof the following subsection:-

(D) The Town Administrator shall see that all provisions of the Massachusetts General Laws, this Charter, town by-laws and votes of the town meeting and the Select Board which require enforcement by the Town Administrator or officers or employees subject to their direction and supervision, are faithfully carried out and performed.

SECTION 32. Said second paragraph of said section 2 of said article 6 of said charter is hereby further amended by striking out subsection (F) and inserting in place thereof the following subsection:-

(F) The Town Administrator shall keep the Select Board and the Finance Committee fully informed as to the financial condition and needs of the Town, and shall make such recommendations to the Select Board for actions to be taken as the Town Administrator deems to be necessary, advisable or expedient.

SECTION 33. Subsection (G) of said second paragraph of said section 2 of said article 6 of said charter is hereby amended by striking out the words "Board of Selectmen" and inserting in place thereof the following words:- Select Board.

115 SECTION 34. Said second paragraph said section 2 of said article 6 of said charter is
116 hereby further amended by striking out subsection (H) and inserting in place thereof the
117 following subsection:-

118 (H) The Town Administrator may at any time inquire into the conduct of any office or
119 any town officer, employee and department or agency under the Town Administrator's
120 jurisdiction and control.

121 SECTION 35. Said second paragraph of said section 2 of said article 6 of said charter is
122 hereby further amended by striking out subsection (I) and inserting in place thereof the following
123 subsection:-

124 (I) The Town Administrator shall be responsible for the negotiation of all contracts
125 involving any subject within the Town Administrator's jurisdiction. All such contracts as may be
126 proposed by the Town Administrator shall be subject to final approval and execution by the
127 Select Board. The Select Board may authorize the Town Administrator to execute any such
128 approved contract on behalf of the Town. The Town Administrator shall be included in the
129 negotiations for the School Department to the extent required by statute.

130 SECTION 36. Subsection (J) of said second paragraph of said section 2 of said article 6
131 of said charter is hereby amended by striking out the second sentence and inserting in place
132 thereof the following sentence:- The Town Administrator shall, in conjunction with that Board,
133 prepare and maintain a plan establishing the personnel staffing requirements for each town
134 agency or department within the Town Administrator's jurisdiction.

135 SECTION 37. Said second paragraph of said section 2 of said article 6 of said charter is
136 hereby further amended by striking out subsection (K) and inserting in place thereof the
137 following subsection:-

138 (K) The Town Administrator shall be the Chief Procurement Officer for the Town and be
139 responsible for the purchase of all common-use supplies, materials and equipment for the Town,
140 to the extent permitted by state law, excepting books and other educational materials for schools
141 and books and other medial materials for the libraries. The Town Administrator shall approve the
142 award of all contracts for all town departments with the exception of the School Department,
143 subject to the approval of the Select Board.

144 SECTION 38. Said second paragraph of said section 2 of said article 6 of said charter is
145 hereby further amended by striking out subsection (L) and inserting in place thereof the
146 following subsection:-

147 (L) The Town Administrator shall perform any other duties required of them under this
148 Charter, the Town of Seekonk by-laws, town meeting vote or a vote of the Select Board.

149 SECTION 39. The first paragraph of section 3 of said article 6 of said charter is hereby
150 amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in
151 place thereof, in each instance, the following words:- Select Board.

152 SECTION 40. Section 4 of said article 6 of said charter is hereby amended by striking out
153 the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each
154 instance, the following words:- Select Board.

SECTION 41. The first sentence of section 5 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 42. Subsection (A) of said section 5 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 43. Said section 5 of said article 6 of said charter is hereby further amended by striking out subsection (B) and inserting in place thereof the following subsection:-

(B) Within 5 days of receipt of the Board’s preliminary resolution, the Town Administrator may request a public hearing by filing a written request for such a hearing with the Select Board. Thereafter, a public hearing shall be held not more than 30 days after the request is filed, nor sooner than 20 days after the filing of the request. The Town Administrator may file a written statement in justification of their tenure in office with the Select Board; provided, that any such statement is received by the Board not more than 48 hours in advance of the public hearing.

SECTION 44. Said section 5 of said article 6 of said charter is hereby further amended by striking out subsection (C) and inserting in place thereof the following subsection:-

(C) The Select Board may adopt a final resolution of removal, which may be made effective immediately, by affirmative vote of the majority of the full Board, at any time after 10 days following the date of delivery of a copy of the preliminary resolution to the Town Administrator, if the Town Administrator has not requested a public hearing, or at any time after the public hearing if they have requested one. Within 10 days following the vote to make the

177 preliminary resolution final, but in no event more than 45 days following the date of adoption of
178 the preliminary resolution, the Select Board shall, by a majority vote of the full Board, either
179 affirm or deny the final resolution of removal. Failure to affirm a final resolution of removal
180 shall nullify the vote to remove the Town Administrator.

181 SECTION 45. The second sentence of subsection (D) of said section 5 of said article 6 of
182 said charter is hereby amended by striking out the words “Board of Selectmen”, each time they
183 appear, and inserting in place thereof, in each instance, the following words:- Select Board.

184 SECTION 46. The first paragraph of section 6 of said article 6 of said charter is hereby
185 amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in
186 place thereof, in each instance, the following words:- Select Board.

187 SECTION 47. The second paragraph of said section 6 of said article 6 of said charter is
188 hereby amended by striking out the words “Board of Selectmen”, each time they appear, and
189 inserting in place thereof, in each instance, the following words:- Select Board.

190 SECTION 48. The fourth paragraph of said section 6 of said article 6 of said charter is
191 hereby amended by striking out the words “Board of Selectmen”, each time they appear, and
192 inserting in place thereof, in each instance, the following words:- Select Board.

193 SECTION 49. Section 1 of article 7 of said charter is hereby amended by striking out the
194 words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each
195 instance, the following words:- Select Board.

196 SECTION 50. Said section 1 of said article 7 of said charter is hereby further amended by
197 striking out the word “He”, each time it appears, and inserting in place thereof, in each instance,
198 the following words:- The Director of Finance.

199 SECTION 51. Section 3 of said article 7 of said charter is hereby amended by striking out
200 the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each
201 instance, the following words:- Select Board.

202 SECTION 52. The second sentence of section 4 of said article 7 of said charter is hereby
203 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
204 following words:- Select Board.

205 SECTION 53. The first paragraph of section 5 of said article 7 of said charter is hereby
206 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
207 following words:- Select Board.

208 SECTION 54. Subsection (G) of the third paragraph of said section 5 of said article 7 of
209 said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in
210 place thereof the following words:- Select Board.

211 SECTION 55. The first paragraph of section 6 of said article 7 of said charter is hereby
212 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
213 following words:- Select Board.

214 SECTION 56. The second paragraph of said section 6 of said article 7 of said charter is
215 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
216 the following words:- Select Board.

SECTION 57. The first sentence of the first paragraph of section 7 of said article 7 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 58. The second sentence of section 1 of article 8 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 59. The second sentence of section 5 of said article 8 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 60. Section 9 of said article 8 of said charter is hereby amended by striking out the word “his” and inserting in place thereof the following words:- the appointee’s.

SECTION 61. Section 10 of said article 8 of said charter is hereby amended by striking out the word “his” and inserting in place thereof the following word:- their.

SECTION 62. Section 11 of said article 8 of said charter is hereby amended by striking out the words “Board of Selectmen”, each time they appear, and inserting in place thereof, in each instance, the following words:- Select Board.

SECTION 63. Section 2 of article 9 of said charter is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:- Except as may otherwise be provided by this Charter, no regular full-time or part-time employee of the Town shall forfeit their pay grade or longevity as a result of the adoption of this Charter.

SECTION 64. This act shall take effect upon its passage.